

22NWCV00691 22NWCV00691

County: los-angeles

Division: Civil Law and Motion

Department: R

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Case Number: 22NWCV00691 Hearing Date: September 10, 2026 Dept: R

#14

MELENDEZ-RODRIGUEZ

v. CITISTAFF SOLUTIONS

CASE NO.: 22NWCV00691

HEARING: Thursday, September 10,
2026, at 9:30 AM

Defendant

CitiStaff Solutions, Inc.'s Motion to Quash Subpoena served on Everest
National Insurance Company is GRANTED.

Moving Party to
give notice.

Background

This sexual assault/wrongful termination action was filed by Plaintiff Alba
Melendez-Rodriguez ("Plaintiff") against Defendants CitStaff Solutions, Inc.,
Camino Real Foods, Inc., and Edy Ernesto Castillo Reyes, on August 10, 2022.

Defendant now moves for an order to quash the deposition subpoena issued
by Plaintiff to Everest National Insurance Company. The motion is unopposed.

Motion
to Quash

“If

a subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b),... may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person. (CCP §1987.1(a).)

Defendant

contends that the subpoenas demand sweeping corporate testimony and the production of broad and sensitive records concerning CitiStaff's insurance policies together with a decade of insurer's claims files, a complete claims history report reaching back to January 1, 2018, every payment, defense costs, and settlement that has eroded policy limits, all coverage and reservation of rights correspondence, and every claim relating to co-Defendant Edy Ernesto Castillo Reyes over the past ten years. Thus, Defendant argues the subpoena is overbroad, invasive, and disproportionate.

Code of Civil Procedure section 2017.210

Code of Civil Procedure section 2017.210

provides, in relevant part, “[a] party may obtain discovery of the existence and contents of any agreement under which any insurance carrier may be liable to satisfy in whole or in part a judgment that may be entered in the action or to indemnify or reimburse for payments made to satisfy the judgment. This discovery may include the identity of the carrier and the nature and limits of the coverage. A party may also obtain discovery as to whether that insurance carrier is disputing the agreement's coverage of the claim involved in the action, but not as to the nature and substance of that dispute.”¿

The subpoena at issue seeks:

(1) any and all policies in effect from
April 1, 2021 through and including June 1, 2021 (the incident-period);

(2) any umbrella/excess policies;

(3) all documents concerning any claim, lawsuit, or indemnity or defense demand under the policy over the past ten years;

(4) a comprehensive claims-history report from January 1, 2018 to the present;

(5) documents evidencing exhaustion, reduction, or impairment of limits;

(6) records of all payments, defense costs, indemnity payouts, and settlements from January 1, 2018 to the present;

(7) all coverage, reservation-of-rights, and denial correspondence; and

(8) all claims relating to Castillo Reyes over the past ten years.

(Defendant's Ex. A.)

The California Supreme Court held that section 2017.210 reaches only the existence and contents of liability policies, "not the assets of the insurance companies," and that nothing in the common law, legislative history, or statutory text authorizes "broad discovery of the financial health of the liability insurer or its ability to meet its contractual obligations under its policies." (*Catholic Mutual Relief Society v. Superior Court* (2007) 42 Cal.4th 358, 373-374.)²²

The Court finds that the subpoena is overbroad and Plaintiff must limit her request to documents related to the availability and extent of CitiStaff's insurance coverage. The subpoena seeks claims files, a claims-history report, limit-erosion detail, and a running tally of every payment, defense cost, and settlement.

Further, as to request 8, other-claims discovery requires a threshold showing of similarity: without a showing that other claims "were or might have been even remotely similar in

nature,” the request is an unauthorized fishing expedition. (Mead Reinsurance Co. v. Superior Ct. (1986) 188 Cal. App. 3d 313, 320.)

Lastly, corporations

have no constitutional privacy right — article I, section 1 protects “people” only — and the corporate right to privacy is a lesser, non-fundamental right. (SCC Acquisitions, Inc. v. Superior Ct. (2015) 243 Cal. App. 4th 741, 755.)

Whether discovery infringes it is resolved by a balancing test weighing relevance and likelihood of leading to admissible evidence against the corporate privacy interest, with doubts about relevance resolved in favor of discovery. (Id.) Here, the relevance of the insurance files is weak as the lawsuit involves employment law/personal injury. Further, Plaintiff has failed to file an opposition to show how the information at issue is relevant. Thus, the overbroad requests would infringe on corporate privacy interests.

Accordingly, the motion to quash is granted.

As to the request for monetary sanctions, Defendant failed to seek sanctions in the notice of motion and thus, the request is denied. (See CCP section 2023.040.)